

ARTICLE 53: CLARIFICATION TO COMMERCIAL BONUS REQUIREMENTS IN THE MBTA ACT OVERLAY

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In 2023, Town Meeting passed Article 12, which included a Commercial Bonus as part of the new MBTA Act Overlay for all stretches of the overlay on Mass Ave and Broadway:

- An extra 5th floor on Broadway + a Zero Setback
- An extra 5th and 6th floors on Mass Ave + Zero Setback
- **BUT ONLY IF..** “at least 60% of **the “ground floor at street level”** is occupied by commercial space

What does “ground floor at street level” mean?

- Surprisingly, the term is up for debate because the 4 members of the ARB who voted on the motion are split on what it meant 2-2
- The law stipulated no deductions from the “ground floor” of the type being deducted in practice

Why is the definition important?

- Thousands of stakeholders were involved in the multi-year process that led to this bonus: residents, TMMs, Ch of C
- “Ground floor” calculations are being proposed that shrink the size of commercial spaces required to qualify for this bonus and enable the bonus on the smallest of lots
- As TMMs we must look to the goals and the spirit of what Town Meeting passed in 2023

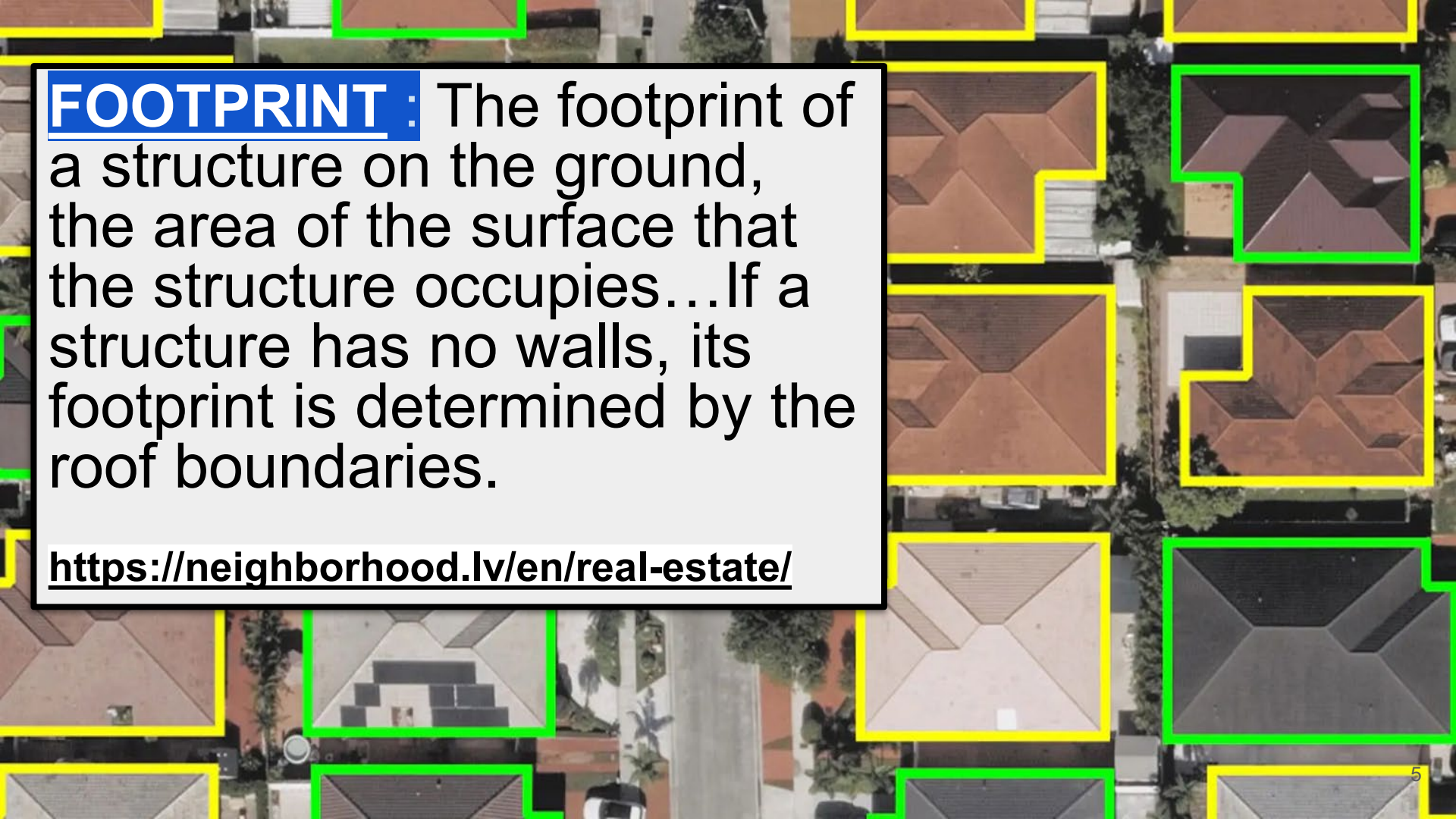
October 2, 2023: Final Public Hearing Where ARB Finalized the Terms of Article 12

<https://youtu.be/KtCl5gUcoSk?si=0ii5lZ2ByaLjAFIP&t=11135>

When asked, the MBTA Overlay Consultant said of the rule:

“...our thinking was that it works on both big parcels and smaller parcels. **If you had a 10,000 sq ft building, that's 6000 sq ft of retail...If you have a smaller parcel.. let's say your footprint is 3000 sq ft.. right, or 2000 sq ft, it would still give you 1200....** I still think within the 60% ..on big projects you're getting a lot, and on smaller projects you're still..still realistic.”

All Board members agreed they were comfortable with this method (60% of the Footprint) and voted 4-0 to endorse the Article that created this bonus rule.

An aerial photograph of a residential neighborhood. Numerous houses are visible, each with its footprint highlighted by a colored outline. Yellow outlines are used for many of the houses, while green outlines are used for others. The outlines precisely follow the rooflines of the buildings, illustrating the concept of a footprint. The houses have various roof colors, including brown, grey, and tan. The surrounding area includes streets, trees, and some greenery.

FOOTPRINT : The footprint of a structure on the ground, the area of the surface that the structure occupies...If a structure has no walls, its footprint is determined by the roof boundaries.

<https://neighborhood.lv/en/real-estate/>

Consequences if we do not clarify Article 53

Some suggest ground floor meant Gross Floor Area. Yet GFA cannot refer to any one floor of a building. They want to exempt parts of the ground floor from the definition of ground floor. If so, commercial space would be reduced well below the 60% minimum we set. 60% could end up being 10% of the Footprint. Every building would qualify.

126 Broadway (when on 1 lot, initially):

~577 sq ft of commercial space short of goal

259 Broadway (on 1 corner lot):

~480 sq ft of commercial space short of goal

126-128 Broadway:

The applicant has been encouraged to reduce the commercial space to some amount that is lower than the 60% of Footprint they designed for..And still get a bonus



4-Story Residential (52 ft tall), with a setback, allowed By Right in the overlay, along with countless other building configurations



Arch. drawing: 126-128 Broadway, with bonus floor and zero setback, and potentially less than the required amount of commercial space, as with 259 Broadway



Developers
trying to
creatively
minimize what
they think
ground floor
means in order
to provide less
commercial
space...

VOTE YES ON ARTICLE 53!

- **Preserve the goal and intent of our commercial bonus rule**
- **Restore public trust**
- **Preserve a proportional and verifiable process**
- **Give Arlington *meaningfully sized* commercial spaces on some lots, if the developer *earns* the bonus**
- **Put onus on developers to meet our standards rather than alter our standard in ways that set bad precedent**

Article 53 Clarifies “Ground Floor” to Align with the Public Record and the Intended Goals of the Bonus

For purposes of this subsection 5.8.4.E.(1), ground floor at street level refers to the two-dimensional area of the surface that the structure occupies, measured from the outside of exterior walls and exterior columns and firewalls, projected onto the ground plane, including cantilevered portions of the structure but excluding the edge of roofs that overhang exterior walls and excluding open decks as well as balconies that overhang an exterior wall.

Please check the Annotated Warrant for links, letters, video clips, and transcripts. This bonus has been debated during nine months of ARB meetings on the first mbta act bonuses at which TMMs and residents have repeatedly asked for strict adherence to our bonus rules.

Gross Floor Area Is Irrelevant

Arlington Zoning Bylaw, 2.8 Basic Provisions:

Gross Floor Area: The sum of the horizontal areas of all stories of a building or buildings on a lot, measured from the interior faces of exterior walls, or in the case of a common wall separating two buildings, from the centerline of such common wall as regulated under Section 5.3.21.

Where Is the MBTA Act Overlay?

